

2:00 PM

LINE 15

25-CIV-06341              MOJTABA TAIEBAT VS. ANDREW G WATTERS

MOJTABA TAIEBAT  
ANDREW G WATTERS

MICHAEL TSIVYAN  
JERAMY STEPHEN STONE

---

MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFF MOJTABA TAIEBAT

**TENTATIVE RULING:**

The court on its own motion continues the hearing until September 8, 2026 at 2:00 p.m. in Department 4 based upon the fact that there is a pending demurrer on August 4, 2026, which is a potentially dispositive motion and the court finds would cause prejudice to the client if counsel were allow to withdraw at this time without the client having another attorney in place. The court notes that it makes this ruling after having initially reviewed the pleadings and seeing the basis for counsel's request to withdraw and counsel for plaintiff and cross-defendant Mojtaba Taiebat.

---

2:00 PM

LINE 16

25-CIV-09820

ROSALIE BACANI VS. HISHAM HASAN, ET AL.

ROSALIE BACANI  
HISHAM HASAN

SCOTT MAURER  
PRO SE

---

MOTION TO COMPEL ARBITRATION AND DISMISS COMPLAINT

**TENTATIVE RULING:**

The court DENIES defendant's motion to compel arbitration.

Counsel for plaintiff Rosalie Bacani states that he was never served with the motion, but only discovered it when he checked the online docket to see if an answer had been filed. (Maurer Decl., ¶ 2.) While proper notice is required for the court to have jurisdiction to hear a motion (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed]), plaintiff has filed a substantive response and has provided no evidence of prejudice. Thus, plaintiff has waived the procedural defect. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 930.)

California law strongly favors arbitration finding it a speedy and relatively inexpensive manner of dispute resolution. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1291.2.) The court must grant the petition to compel arbitration unless it finds the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Id.*, § 1281.2.) Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) Defendant bear the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972].)

A motion to compel arbitration triggers a three-step framework that shifts the burden of production between the parties. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) First, the moving party bears an initial burden of producing prima facie evidence of an agreement to arbitrate. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 754–755); Cal. Rules of Court, rule 3.1330.) If the moving party meets this burden, step two shifts the burden to the party opposing arbitration to identify a factual dispute as to the agreement's existence. (*Ibid.*)

---